

13. 25CV02049 Christina Dake, Guardian Ad Litem for Peyton Dake v. Biggs Unified School District

EVENT: Defendant Biggs Unified School District's Demurrer to Plaintiff's First Amended Complaint

Defendant Biggs Unified School District's Demurrer to Plaintiff's First Amended Complaint is SUSTAINED WITH LEAVE TO AMEND.

Since the duty of a governmental agency can only be created by statute or 'enactment,' the statute or 'enactment' claimed to establish the duty must at the very least be identified. (*Ramsey v. City of Lake Elsinore* (1990) 220 Cal.App.3d 1530, 1542) As Defendant noted, Civil Code 1714 does not itself impose liability on a government entity. (*Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1183)

Plaintiff shall amend within 20 days' notice of this order. Defendant shall prepare the form of order.

14. 25CV05008 Briggs, Cheyenne et al v. Muniz, Christian et al.

EVENT: Motion to Set Aside Defaults Entered Against Defendants Christian Muniz and Mollie Gunn

Motion to Set Aside Defaults Entered Against Defendants Christian Muniz and Mollie Gunn is GRANTED and is unopposed. The Court will sign the proposed order.

15. 25MH00574 Chico Police Department v. Lucas, Cole Buchanan

EVENT: Petition for Determination Regarding Return of Deadly Weapons

The Court will conduct a hearing. The Court notes the Petition does not appear to include a statement that Respondent was issued a receipt as required by Welfare & Institutions Code 8102. Although the Petition appears to indicate that is forthcoming, the Court is not finding it in the file.